

GZ: 2022-0.858.901 dated September 6, 2023 (Case Number: DSB-D213.1508)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides in the context of the data protection review pursuant to Art. 58 para. 1 lit. b GDPR against the secondary school N***dorf, E***platz *3, **** N***dorf as follows:

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The responsible party violates the GDPR by operating image processing in the premises of the secondary school N***dorf at the address E***platz *3, **** N***dorf, whereby the processing of image recordings from Camera 1 “Ground Floor - Corridor in front of IT Rooms”, Camera 2 “2nd Floor - Corridor from Teachers' Room and Administration”, Camera 3 “3rd Floor - Corridor towards Emergency Staircase” and Camera 4 “Entrance Area” occurs during school operation contrary to the provisions of Art. 6 para. 1 GDPR (Lawfulness). The responsible party is ordered to restrict the image processing of Cameras 1, 2, 3, and 4 within a period of two weeks in such a way that no recordings are made during school operation or that the cameras are turned off during school operation.

Legal bases: Art. 4, Art. 5, Art. 6, Art. 51 para. 1, Art. 57 para. 1 lit. a and lit. h, Art. 58 para. 1 lit. b and para. 2 lit. d, lit. f, as well as Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1, §§ 1 para. 1 and 2 of the Data Protection Act (DSG), BGBl. I No. 165/1999 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1.

The Data Protection Authority initiated a data protection review pursuant to Art. 57 para. 1 lit. h GDPR (“official examination procedure”) against the responsible party regarding the cameras in the school corridors with a decision dated November 8, 2022.

2. The responsible party stated in its submission dated November 25, 2022, essentially that it operates four cameras. Two cameras are located on the ground floor (corridor in front of the IT facilities and school entrance), one on the second floor (corridor in front of the teachers' room and administration), and one on the third floor (corridor towards the emergency staircase). The recordings are kept for 48 hours and aim to protect individuals, prevent thefts or assaults. The desire to install the cameras arose because there had been burglaries and thefts of valuables belonging to the teaching staff in the past. The cameras are video devices from the manufacturer ***CAM.

Attached to the submission were photos of the cameras, as well as screenshots of the recording areas.

B. Subject Matter of the Proceedings

Based on the submissions of the responsible party, it follows that the subject matter of the proceedings is the question of whether the image processing in the form of four video cameras in the premises of the secondary school N***dorf, E***platz *3, **** N***dorf, is lawful.

C. Findings of Fact

1. The responsible party for the image processing, the secondary school N***dorf, is a public compulsory school with the school identification number *4*2*9*, located at E***platz *3, **** N***dorf.

2. The responsible party currently operates a total of four cameras in the school premises, with two cameras on the ground floor (Camera 1 “Ground Floor - Corridor in front of IT Rooms, Camera 4 “Entrance Area”), one camera on the 2nd floor (Camera 2 “2nd Floor - Corridor from Teachers' Room and Administration”) and one camera on the 3rd floor (Camera 3 “3rd Floor - Corridor towards Emergency Staircase”). The purpose of processing the video recordings is to protect individuals and property.

The recording area of the cameras is as follows:

[Note from the editor: The graphic file depicting the four recording areas described above has been

removed.]

3. The responsible party retains the recordings for 48 hours. The video surveillance is marked in the school entrance area.

Assessment of Evidence: The findings are based on the statements of the responsible party as well as particularly the photographs of the cameras and the screenshots of the recording areas of the cameras.

D. From a legal perspective, it follows:

According to § 1 para. 1 DSG, everyone has the right to confidentiality regarding their personal data, especially with regard to the respect for their private and family life, as long as there is a legitimate interest in doing so. Such an interest is excluded if data is not accessible to a confidentiality claim due to its general availability or lack of traceability to the affected individual.

According to § 1 para. 2 DSG, restrictions on the confidentiality claim are generally permissible if the use of personal data occurs in the vital interest of the affected individual or with their consent, in the presence of overriding legitimate interests of another party, or if there is a qualified legal basis.

****A limitation of the confidentiality claim under § 1 Abs. 2 DSG by a public authority in the context of sovereign administration is, however, only possible on a legal basis in the sense of Art. 6 Abs. 1 lit. e GDPR, which also follows from the principle of legality in Art. 18 Abs. 1 B-VG.****

The subject of the proceedings concerns cameras of a public authority, namely a compulsory school. The data processing is designed to be (permanently) ongoing. The purpose stated is the protection of individuals, protection against theft or robbery. In particular, there have been past incidents of break-ins and theft of valuables belonging to the teaching staff.

The facts are similar to those that the Data Protection Commission dealt with in its decision of June 20, 2008, K600.054-001/0002-DVR/2008, in the context of the notification of video surveillance in a public school. The video surveillance was intended to be operated in school corridors and in the entrance hall for the purpose of property and personal protection.

The excerpted reasoning for the rejection of the notification can also be applied to the present proceedings:

“The Data Protection Commission assumes in its consistent decision-making practice that video surveillance for sovereign purposes is only permissible based on an explicit, sufficiently determined legal authorization. Video surveillance by public authorities in the context of private economic activities for the purposes of self-protection or protection of responsibility may, however, also be permissible without an explicit legal authorization, if it is carried out as a response to specific risk situations by the holder of house rights, taking into account the principle of proportionality. Preventing the endangerment of students by other students within the school is part of the supervisory duty assigned to teachers by § 51 Abs. 3 School Instruction Act (SchUG) and is part of the educational work that schools are required to perform. The use of technical surveillance measures within the framework of school instruction and educational work would be considered a surveillance measure for the fulfillment of legal duties and would fall under the strict legal reservation of § 1 Abs. 2 DSG 2000 for “interventions by state authorities.” (...) However, video surveillance in schools outside of instructional time would have to be assessed differently. Video surveillance for the protection against vandalism or property crimes within the school building, for example during nighttime hours, would be regarded as an exercise of house rights and thus as a private economic activity, which would not raise any particular data protection issues if access to the school building is completely prohibited during the surveillance period, so that no legitimate data protection interests can be violated by the video surveillance (...).”

Essentially, the responsible party in the present proceedings relies on legitimate interests in the sense of Art. 6 Abs. 1 lit. f GDPR (in particular, the protection of property of work tools, as well as the protection of the property of the affected individuals and personal protection); however, a public authority, in the context of sovereign administration – in this case, the school operation – cannot rely on legitimate interests but requires an explicit, sufficiently determined legal authorization (cf. § 1 Abs. 2 DSG).

Such a legal authorization for video surveillance in school corridors or school premises does not exist. Rather, § 51 Abs. 3 of the SchUG stipulates that supervision during breaks must be carried out by teaching staff.

Furthermore, continuous surveillance of minors in the corridors of a compulsory school (typically involving 10 to 14-year-olds) would not be the least intrusive means in the sense of § 1 Abs. 2 DSG, last sentence, especially since children enjoy special protection of their personal data (cf. Art. 8 GDPR regarding consent and Recital 38).

Video surveillance by public authorities in the context of private economic activities for the purposes of property protection may, however, be permissible under the conditions of Art. 6 Abs. 1 lit. f GDPR within the framework of house rights (cf. Guidelines 3/2019 of the EDPB on the processing of personal data through video devices, p. 10ff.), which is why the imposed limitation of processing explicitly refers to the period of school operation.

****Regarding the limitation of processing for Camera 1, 2, 3, and 4:****

The Data Protection Authority can impose a “temporary or permanent restriction of processing, including a prohibition” against the responsible party according to Art. 58 Abs. 2 lit. f GDPR.

The Data Protection Authority has issued a temporal limitation stating that no recordings may be made by Camera 1, Camera 2, Camera 3, and Camera 4 during school operation, or that the cameras must be taken out of operation. Outside of school operation – and thus outside of sovereign activities – it is the responsibility of the school management, within the framework of private economic administration, to take preventive measures for object protection, possibly within the framework of house rights.

The responsible party is requested to submit corresponding evidence (e.g., a confirmation) regarding the limitation of processing for Camera 1, 2, 3, and 4 within a period of six weeks.

It was therefore decided in accordance with the ruling.